

Presidents Pension (Maintenance of Secretarial Staff and Medical Attendance) Rules, 1962

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[PRESIDENTS-PENSION-MAINTENANCE-OF-SECRETARIAL-STAFF-AND-MEDICAL-ATTENDANCE-RULES-1962](#) of 1962

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[Presidents Pension \(Maintenance of Secretarial Staff and Medical Attendance\) Rules, 1962](#)

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[G.S.R. No. 1328, dated 1.10.1962.- In exercise of the powers conferred by Section 5 of the President's Pension Act, 1951 \(30 of 1951\), the Central Government hereby makes the following rules namely :-](#)

[1.](#)

[Short title and commencement.-](#)

(1)

These rules may be called the President's Pension Rules, 1962.

2.

Definitions.-

In these rules, unless the context otherwise requires -

(a)

`retired President' means a person who has ceased to hold office as the President of India either by the expiration of his term of office or by resignation of his office and includes the last Governor-General of India;

(b)

`secretarial staff' means any person or persons who may be employed by the retired President in connection with secretariat work;

(c)

`medical attendance and treatment' include medical consultation, cost of medicines, clinical and pathological tests, other methods of examination and surgical operations, which the retired President may require;

(d)

`medical attendant' means any registered medical practitioner practicing any system of medicine;

(e)

`regular medical attendant' means a medical attendant who may be nominated by the retired President for regular medical attendance and treatment;

(f)

`travelling expenses' mean -

(i)

in the case of Government medical officers, such travelling and other allowances as may be admissible to them under the rules of their service; as

(ii)

in the case of persons other than Government medical officers, expenditure incurred on travel not exceeding the amount admissible to a Class I Government servant of the highest grade.

3.

Maintenance of secretarial staff.-

(1)

During each financial year, an amount not exceeding Rs. 12,000 (Rupees twelve thousand) only shall be paid to every retired President towards the actual charges incurred by him for the maintenance of his secretarial staff and office expenses.

(2)

At the initial appointment of the staff, information regarding the number of persons employed, their emoluments and the periods of their employment shall be furnished to the Central Government. All subsequent changes shall also be intimated as and when they occur.

(3)

The amount required by the retired President or the surviving spouse of a deceased President, as the case may be, for the maintenance of secretarial staff and the office expenses shall be drawn in the form of simple receipt as and when required.

(4)

At the end of each year, a certificate in Form I appended to these rules shall be given by the retired President to the effect that the amount so far drawn by him has been expended for the purpose for which it had been drawn.

4.

Medical Attendance and Treatment.-

(1)

The retired President shall be entitled to medical attendance and treatment at his residence, or at the clinic, nursing home or institution of similar nature or consulting room of the medical attendant, specialist or practitioner concerned-

(a)

by a medical attendant or the regular medical attendant; and

(c)

by a specialist or medical practitioner not falling under clause (a)

Provided that a specialist or medical practitioner or medical attendant other than the regular medical attendant shall be called from outside the State in which the retired President is residing, only on the advice of the Director of Medical Services or other corresponding officer in the State concerned or the officer-in-charge of the principal Government hospital in the district.

(2)

The retired President shall also be entitled to any other expenditure that may be incurred by him in connection with his treatment by the medical attendant, the regular medical attendant or the specialist or practitioner referred to in sub-rule (1), as the case may be.

(3)

All expenses referred to in sub-rule (1) and (2) in rule 5 shall be borne by the Central Government on production of a certificate by the retired President in Form-II, or by any person authorised by him in this behalf in Form-IIA appended to these rules.

5.

Hospitals, Nursing Homes and Medical Institutions at which treatment may be received.-

A retired President shall also be entitled to medical treatment and attendance in any hospital, nursing home or medical institution in India. All expenses incurred in this connection shall be borne by the Central Government.

6.

Travelling Expenses.-

Any travelling expenses incurred by the retired President or the medical attendant or regular medical attendant or specialist or medical practitioner in connection with the medical attendance and treatment of the retired President shall be borne by the Central Government on production of a certificate by the retired President in Form-III, or any person authorised by him in this behalf in Form-IV, appended to these rules. In the case of a Government medical officer who may perform journeys to attend on the retired President, the travelling expenses may be drawn by him through the usual Government channels. If the officer belongs to a State Government, the latter may claim reimbursement of the cost from the Central Government.

7.

Interpretation and removal of difficulty.-

If any question arises relating to the interpretation of these rules or any difficulty arises in complying with the provisions of these rules, it shall be referred to the Central Government in the Ministry of Home Affairs whose decision thereon shall be final.

8.

Saving.-

Nothing in these rules shall be deemed to prevent the Central Government from providing to a retired President, his spouse or the spouse of a person who dies while holding the office of President any facility relating to the medical treatment or attendance or travelling expenses for any journey performed by him or the spouse which is not authorised by rules 4 to 6B.

FORM - I

[Form of certificate referred to in sub-rule (4) of rule 3]

Certified that the amount of Rs. (Rupees) drawn by me during the year ending 31st March, 19..... has been expended on the maintenance of my secretarial staff and the office expenses thereof.

Signature :.....

Date :.....

Place :.....

FORM - II

(Form of certificate referred to in rule 4 and rule 6B)

Certified that the amount of Rs..... (Rupees.....) drawn by me has been expended in connection with my medical treatment/attendance/consultation.

Signature :.....

Date :.....

Place :.....

FORM - III

(Form of certificate referred to in rule 6)

Certified that the amount of Rs. (Rupees) drawn by me on account of travelling expenses has been incurred by me/my medical attendant/specialist/medical practitioner in connection with medical consultation/attendance/treatment.

Signature :.....

Date :.....

Place :.....

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